

BO LAO DONG VIET NAM

NGHI DINH 145/2020/ND-CP

Huong dan thi hanh Bo luat Lao dong

PHAN I: QUY DINH VE THU VIEC

Dieu 1. Thoi gian thu viec

1. Thoi gian thu viec thoa thuan trong hop dong thu viec khong qua 02 ngay lam viec tuan, it nhat 01 lan trong tho gian 180 ngay, tru nhung truong hop sau:
 - a) Cong viec nang, doc hai, nguy hiem;
 - b) Cong viec yeu cau trinh do chuyen mon cao, ky nang chuyen doi cao.
2. Muc luong thu viec it nhat bang 85% muc luong cua viec chinh thuc.

Dieu 2. Tra luong thu viec

1. Muc luong thu viec = Muc luong chinh thuc cua viec tuong ung x 85%
2. Ngươi dung lao dong tra luong thu viec theo thoi gian thuc te lam viec.

PHAN II: LUONG VA PHUONG THUC TRA LUONG

Dieu 3. Cac khoan phu cap

1. Cac khoan phu cap bao gom:
 - a) Phu cap chuc vu;
 - b) Phu cap phuc vu;
 - c) Phu cap thanh toan lan;
 - d) Phu cap di lam xa;
 - e) Phu cap khac.
2. Muc phu cap do nguoi dung lao dong va nguoi lao dong thoa thuan.

Dieu 4. Tra luong

1. Nguoi dung lao dong tra luong cho nguoi lao dong it nhat 01 lan/thang hoac chia theo ky tra luong.
2. Phuong thuc tra luong do nguoi dung lao dong va nguoi lao dong thoa thuan.